HARBOURLIGHT MEDIA

Clearance Code: Less Healthy Food

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1. Purpose and scope

This code sets out when and where Harbourlight Media may transmit advertising for less healthy food and drink. It applies to every spot of every campaign in the category on Harbourlight One, Harbourlight Sport, Harbourlight Drama and Harbourlight Life.

A campaign is cleared in full only when its copy is acceptable and every booked spot meets the scheduling rules in sections 4 to 7; when some spots do not, only its compliant spots can be cleared. The clearance desk checks both, and a Clearance Controller decides, as the Advertising Clearance Policy describes.

The code is published to agencies and may be quoted to anyone who asks.

2. Products covered

This code covers advertising for less healthy food and drink: confectionery, soft drinks, fast food, savoury snacks, breakfast cereals and ice cream that Harbourlight's nutrient profiling assessment identifies as less healthy.

A product the assessment does not identify as less healthy is not advertised under this code.

3. How this code is applied

The rules in sections 4 to 7 apply to every booked spot of a campaign for less healthy food and drink, on the broadcast day the spot belongs to.

Times in this code are written on the ordinary 24-hour clock. The Scheduling and Audience Rules explain how they are placed on the broadcast day, and what a centre break, an end break, in and adjacent mean.

A spot in a centre break is in the programme around it. A spot in an end break is adjacent to the programme before it and to the programme after it.

A spot that meets every rule may be transmitted. A spot that breaks a rule may not be transmitted, and is recorded against every rule it breaks.

4. Restricted hours

Spots for this category may not be transmitted between 05:30 and 21:00.

The restricted hours apply to every break, including a break within live sport coverage.

5. The under-18 audience

Spots may not be transmitted in or adjacent to a programme whose under-18 audience index is 120 or more.

The index is the forecast under-18 audience index that Harbourlight's audience planning team publishes for each programme before the booking week begins, as the programme schedule shows it.

A spot in an end break is tested against both programmes, and breaks this rule if either of them is indexed at or above the figure in this section.

6. Programmes made for children

Spots may not be transmitted in or adjacent to a programme made for children.

A programme is made for children when the programme schedule marks it so, whatever its under-18 audience index.

The rule covers the end breaks before and after such a programme as well as its centre breaks.

7. How many spots, and how far apart

No more than 8 spots of one campaign may be transmitted on one channel in one broadcast day.

Two spots of one campaign on one channel must be at least 10 minutes apart.

Both rules are applied per campaign, per channel and per broadcast day, to the spots in the order they are transmitted. Every booked spot counts towards the limit, whether or not it breaks another rule.

The separation is measured from the campaign's previous spot on the same channel in the same broadcast day. Two spots of one campaign in one break are zero minutes apart and are transmitted in the order of their spot references.

8. Copy requirements

The copy of every campaign in this category must meet these requirements, and the issue guides say how the clearance desk checks each kind of claim.

- A health or nutrition claim may be made only when the product meets the conditions for it, in the permitted wording.
- The copy must not use a character, a celebrity or a licensed property with strong appeal to under-18s to promote the product.
- The copy must not offer a promotion, a collectable or a giveaway aimed at under-18s.
- The copy must not encourage eating or drinking to excess, or suggest that the product can take the place of a balanced diet.
- A price or an offer must be genuine, with its significant conditions on screen beside the headline.

9. Standing restrictions on every cleared spot

Every cleared spot in this category is cleared subject to these standing restrictions:

- A cleared spot may be transmitted only on the channel, broadcast day and break its certificate shows.
- The copy is cleared as submitted under its clock number, and any change needs a new clearance.
- If a programme's forecast index is revised before transmission, a spot in or adjacent to it must be checked again against section 5.
- The copy may not be cut down, or used as a programme sponsorship credit, without a new clearance.

10. Re-booking a withdrawn spot

Move a spot withdrawn under section 4 to a break outside the restricted hours. This code has no exception for live sport coverage, so a break inside a live match during the restricted hours is no alternative. Late evening breaks next to programmes forecast below the threshold in section 5 are the usual choice. A spot withdrawn under section 7 may move to another broadcast day or channel, where it counts with the campaign's other spots there. Send the new break to the clearance desk with the campaign and spot references, and the desk checks it against this code before it is transmitted.

11. Questions about this code

Agencies can ask about the less healthy food code through the Agency Liaison assigned to them. Questions about a particular campaign are answered only for the agency that booked it.